

2. 9:00 AM CASE NUMBER: C24-01189
CASE NAME: M. B. VS. ANGELA STOCKARD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: STOCKARD, ANGELA

TENTATIVE RULING:

Defendant Angela Stockard ("Defendant") brings this demurrer to the third amended complaint ("TAC") of plaintiff M.B., a minor ("M.B."), through her guardian ad litem Rocio B., and Rocio B. ("Rocio," together with M.B., "Plaintiffs"). Defendant challenges Plaintiffs' fourth cause of action for negligent infliction of emotional distress and fifth cause of action for intentional infliction of emotional distress. For the reasons discussed below, the Court's tentative ruling is to sustain Defendant's demurrer as to the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress.

Meet and Confer

The meet and confer requirement has been satisfied. (Michael Della Maggiore Decl., ¶ 7; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background

Plaintiffs filed the original Complaint in this matter on May 2, 2024, and the First Amended Complaint on October 7, 2024. Plaintiffs filed the Second Amended Complaint on March 24, 2025.

Plaintiffs filed the instant TAC on September 10, 2025. The TAC alleges five causes of action arising from incidents of sexual assault and harassment of Plaintiff M.B. by student, G.G., at J.O. Ford Elementary and Helms Middle School in Richmond and San Pablo, respectively, within the area of West Contra Costa School Unified District [WCCSD]. Plaintiffs contend that Defendant withheld knowledge of the incidents from M.B.'s mother, Rocio B., and failed to adequately protect M.B. from G.G., even after being informed of incidents of assault.

This Court sustained Defendant's demurrer to the Second Amended Complaint on August 11, 2025, ruling: "Plaintiff Rocio B.'s allegations do not include detail sufficient to demonstrate that facts supporting the ruling in *Phyllis P.* are present in this case. Specifics with respect to the context and intent of 'mistake' and with respect to reporting and disclosing of the prior assaults is needed to support the elements of the emotional distress claims of Rocio B. at the pleading stage."

Discussion

Negligent Infliction of Emotional Distress

"Negligent infliction of emotional distress is a form of the tort of negligence, to which the elements of duty, breach of duty, causation and damages apply." (*Huggins v. Longs Drug Stores California, Inc.* (1993) 6 Cal.4th 124, 129.)

Defendant argues that California does not recognize a separate cause of action for negligent infliction of emotional distress (NIED). (Demurrer MPA, p. 4:5-11.) The Court will not entertain this argument as it could have been made previously but was not. "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer." (Code Civ. Proc., § 430.41, subd. (b).)

Defendant argues that this case is distinguishable from *Phyllis P. v. Sup. Ct.* (1986) 183 Cal.App.3d 1193, on which Rocio relies to support this claim. (Demurrer MPA, p. 4:12-26.) Defendant points out that in this case the allegations are that Defendant informed Rocio of the sexual assault of M.B. the day after the incident, which is distinguishable from *Phyllis*, where the school officials made a decision to not inform the parent of the sexual assault. (Compare TAC, ¶ 16 ["they also withheld that information from ROCIO B. not informing her of the April 18, 2023 incident until the evening of April 19, 2023, and this was by mistake."] with *Phyllis P. v. Superior Court* (1986) 183 Cal.App.3d 1193, 1195 ["together they decided not to notify petitioner of the incidents."].)

Rocio argues that in *Phyllis*, the school officials "were deliberately usurping the parental prerogative to protect the child." (Opposition, p. 3:1-2.) Rocio then proceeds to assert "The TAC alleges that Defendant Stockard, along with the other defendants, engaged in precisely this conduct and cites to paragraphs 9, 14, and 65. (*Id.*, at 3:3-17.)

However, the difference here is that Rocio learned of the sexual assault the very next day and the school officials even "suggested to Rocio B. that she come up with a plan on how to proceed." (TAC, ¶¶ 15-16.) This is not usurping Rocio's parental prerogative, but explicitly giving it importance. This goes towards breach, as the duty is to notify the parents of the sexual assault and that is alleged to

have happened here. (*Phyllis P. v. Superior Court* (1986) 183 Cal.App.3d 1193, 1196 [“defendants had a duty to notify petitioner upon learning of the first series of sexual assaults upon Ciera.”].) Here, it is alleged that Defendant informed Rocio the very next day, which distinguishes the case here from *Phyllis*. (TAC, ¶ 16.) Although Rocio alleges that the disclosure here was done by mistake, there are insufficient facts alleged in the TAC regarding that to determine how that fact is material and changes the result here. This is a similar shortcoming that the Court identified with respect to this issue in the Second Amended Complaint.

Defendant argues that Rocio has not pleaded duty or breach. (Demurrer MPA, p. 5:8-11.) The Court finds that Rocio has properly pled duty but not breach. Defendant’s demurrer to Plaintiffs’ fourth cause of action for negligent infliction of emotional distress is SUSTAINED.

Intentional Infliction of Emotional Distress

“In order to state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (*Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 883.)

Defendant argues that Rocio has not stated a claim for intentional infliction of emotional distress because she fails to allege extreme and outrageous conduct. (Demurrer MPA, pp. 5:21-6:20; Reply, p. 3:12-24.) Defendant also argues that Rocio Fails to adequately allege that Defendant acted intentionally, or with reckless disregard, to cause emotional distress, and that the TAC shows no causal link between the emotional distress and the alleged concealment of notice of the assault. (*Id.* at p.p. 6:21-8:8.)

Plaintiff argues that Defendant “characterizes this as merely a ‘one-day delay’ in reporting, but this mischaracterizes the allegations. The TAC alleges that when Rocio B. was ultimately notified on April 19, 2023, it was by accident. (TAC ¶ 73.) This means that but for the accidental disclosure, Defendants intended to continue concealing the assault indefinitely.” (Opposition, pp. 5:28-6:3.)

The Court does not find that an accidental disclosure is a sufficient basis to conclude that absent the accidental disclosure there was an intent to forever withhold this information. As stated above, the Court requires more factual information about how the information was provided to Rocio by mistake or accident and how that makes the one-day delay into something more serious. Plaintiffs allege that Defendant “directed, orchestrated, or allowed a cover-up of the sexual assault of M.B. to occur, failing to investigate it and failing to notify M.B.’s mother of the sexual assault of her daughter.” However, Plaintiffs also allege that M.B. was assaulted on April 18, 2023, and that this was reported to Rocio on the evening of April 19, 2023. The allegations of a cover up and failing to notify M.B.’s mother conflict with the allegations that Rocio was informed of the sexual assault the day after it occurred. “Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that adds *details* or *explanatory facts*, it is possible that a conflict or inconsistency will exist between the general allegation and the specific allegations. To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation.” (*Perez v. Golden Empire Transit District* (2012) 209 Cal.App.4th 1228, 1235-1236, *italics added.*) Here, under the facts pled, Plaintiffs do not plead

extreme or outrageous conduct on the part of Defendant.

With respect to the argument that there is no causal link between the emotional distress and the alleged concealment of notice of the assault, the Court is more concerned about there being no concealment of the April 18, 2023 assault, based on the facts alleged. Regarding the “previous attacks by this same student” that M.B. did not learn of until September 2023, there is not enough facts alleged about these to determine whether they are sufficient to have triggered a duty to inform M.B. earlier.

Defendant’s demurrer to Plaintiffs’ fifth cause of action for intentional infliction of emotional distress is SUSTAINED.

Ruling on the Demurrer

Defendant’s demurrer as to the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress is SUSTAINED. The Court is inclined to provide Plaintiffs one final chance to amend. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, Rule 3.1320(g).)

3. 9:00 AM CASE NUMBER: C24-01189
CASE NAME: M. B. VS. ANGELA STOCKARD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY: RIDENOUR, REBECCA
TENTATIVE RULING:

Defendants West Contra Costa Unified School District (“District”), Rebecca Ridenour (“Ridenour”), and Vranda Booker (“Booker,” with District and Ridenour, “Defendants”) brings the instant demurrer to the third amended complaint (“TAC”) of plaintiff M.B., a minor (“M.B.”), through her guardian ad litem Rocio B., and Rocio B. (“Rocio,” together with M.B., “Plaintiffs”). Defendants challenge Plaintiffs’ second cause of action for negligent training and supervision, fourth cause of action for negligent infliction of emotional distress, and fifth cause of action for intentional infliction of emotional distress. For the reasons discussed below, the Court’s tentative ruling is to sustain Defendant’s demurrer as to the second cause of action for negligent hiring, supervision or retention, the fourth cause of action for negligent infliction of emotional distress and the fifth cause of action for intentional infliction of emotional distress.

Meet and Confer

The meet and confer requirement has been satisfied. (Kellie M. Murphy Decl., ¶¶ 3-5; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39